

Swamideen v. State of U.P. and 5 Others

High Court of Judicature at Allahabad · Division Bench · 3 April 2023 · Writ-C No. 9710 of 2023 · **Petition disposed; clause 6.5 objection; coercive recovery stayed six weeks**

HEADNOTE

Writ challenging recovery certificates for electricity dues of Rs. 1,92,974 disposed of with liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided by respondent no. 3 by a speaking order; coercive recovery stayed for six weeks.

FACTUAL SUMMARY

Swamideen filed Writ-C No. 9710 of 2023 in the Allahabad High Court against the State of U.P. and five others. He challenged recovery certificates of 7 September 2021 and 13 January 2022, issued by respondent nos. 3 and 5, for electricity dues of Rs. 1,92,974. On 27 March 2023 the Electricity Department sought time for instructions, and coercive action on the certificates was restrained until the next date. On 3 April 2023 the Department said any objection he filed would be decided under clause 6.5 of the Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

objection to recovery of electricity dues

HOLDING

The writ against recovery certificates for electricity dues is disposed of with liberty to the consumer to file an objection within three weeks. Respondent no. 3 shall decide that objection by a speaking order within the next three weeks, in terms of clause 6.5. Coercive measures on the recovery shall not be taken for six weeks and shall thereafter abide by that decision. ¶ 2

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ was disposed without examining the demand, with liberty to object under clause 6.5 and a direction that respondent no. 3 pass a speaking order. ¶ 2

para-6.5-objection-before-coercive-recovery Coercive action on the recovery certificates was restrained for six weeks, covering the time to file and decide the clause 6.5 objection. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY DUES OF RS. 1,92,974 AND THE RECOVERY CERTIFICATES DATED 7.9.2021 AND 13.1.2022 WERE JUSTIFIED

Left to respondent no. 3 on an objection under clause 6.5, to be decided by a speaking order. ¶ 2